



SECURITIES AND FUTURES COMMISSION 證券及期貨事務監察委員會

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3 March 2004

Circular to Licensed Corporations and Associated Entities

Anti-Money Laundering / Combating Terrorist Financing

(1) Non-cooperative Countries and Territories (“NCCTs”)

(2) United Nations Sanctions (Afghanistan) Regulation

(1) Non-cooperative Countries and Territories (“NCCTs”)

The Financial Action Task Force on Money Laundering (“FATF”) regularly updates its list of NCCTs. At its recent plenary meeting, it has decided to remove Ukraine and Egypt from the list of NCCTs. The updated list of the remaining 7 NCCTs is as follows:

Cook Islands
Myanmar
Philippines

Guatemala
Nauru

Indonesia
Nigeria

Licensed corporations and associated entities are reminded to give special attention to businesses and transactions with persons, including companies and financial institutions, in the above NCCTs, in accordance with Recommendation 21^{Note 1} of the FATF Forty Recommendations.

The FATF will regularly review the NCCT list. Changes to the list, if any, will be conveyed to licensed corporations and associated entities through circulars in due course. Further information on the FATF work in respect of NCCTs is also available on the website of FATF at www.fatf-gafi.org.

^{Note 1} Recommendation 21: Financial institutions should give special attention to business relationships and transactions with persons, including companies and financial institutions, from countries which do not or insufficiently apply the FATF Forty Recommendations. Whenever these transactions have no apparent economic or visible lawful purpose, their background and purpose should, as far as possible, be examined, the findings established in writing, and be available to help competent authorities. Where such a country continues not to apply or insufficiently applies the FATF Recommendations, countries should be able to apply appropriate countermeasures.



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(2) United Nations Sanctions (Afghanistan) Regulation (“Regulation”)

An updated list specifying terrorists and terrorist associates designated by the United Nations Security Council Committee was published under the Regulation in the Gazette on 27 February 2004 (G.N. 1324). The new list can be found in the Government website www.gld.gov.hk/eng/welcome.htm under eGazette^{Note 2}.

Please note that the above list is identical to the list published under the United Nations (Anti-Terrorism Measures) Ordinance on 13 February 2004 (please see our circular of 27 February 2004). The following individuals and entities have been added to the list:

Part C (Individuals belonging to or associated with the Al-Qaida organization)

- Salaiman Jassem Sulaiman ABO GHAITH (item 10)
- Jamel LOUNICI (item 100)

Part D (Entities belonging to or associated with the Al-Qaida organization)

- Al-Haramain Foundation (Indonesia) (item 18)
- Al-Haramain Foundation (Pakistan) (item 19)
- Al-Haramain Foundation (Kenya) (item 22)
- Al-Haramain Foundation (Tanzania) (item 23)

Also, information regarding the following individual has been updated:

Part C (Individuals belonging to or associated with the Al-Qaida organization)

- Ayadi Shafiq Ben Mohamed BEN MOHAMED (item 50)

The SFC reminds licensed corporations and associated entities to take all necessary steps to ensure compliance with the Regulation. Besides reporting to the JFIU of any transactions or relationships you have or have had with the named individuals and entities, you should refrain from, amongst other things, providing or collecting, by any means, directly or indirectly, funds to the named individuals and entities pursuant to the Regulation. Previous circulars on this subject are available in SFC’s website www.hksfc.org.hk.

Licensed corporations and associated entities are reminded to browse the websites mentioned in this circular regularly for the latest information as the designated names are updated from time to time.

^{Note 2} Please note that in order to access the complete list of names, you need to click on the “◀” keys next to the “📄” icon at the bottom right of the gazette page to bring you to the next section of the gazette.



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If there is any question regarding the content of this circular, please contact Ms Madonna Yip at 2842-7618.

Intermediaries & Investment Products
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